No. 26-10536

In the United States Court of Appeals for the Fifth Circuit

Ellen Mae Fisher,

Plaintiff–Appellant,

v.

Texas Tech University Regents; Dean Jack Wade Nowlin, Dean and W. Frank Newton Professor of Law at the School of Law; Jared Gonzales, In his individual and official capacity as Dean of the Texas Tech School of Law; Larry Spain, Alvin R. Allison Professor of Law and Director of the Clinical Programs and Civil Practice Clinic at the School of Law; Amy Hardberger, George W. McCleskey Professor of Water Law and Director of the Center for Water Law and Policy at the School of Law; Allison Outenreath, Associate Dean for Faculty Development, and the Erwin and Elaine Davenport Endowed Professor of Law at the School of Law; Ally Owens, Student member of the School of Law Honor Council; Terri Morgeson, In their individual and official capacities as Faculty and/or Officers of the Texas Tech School of Law Honor Council; Cody Campbell, Chairman of the Regents; Dustin Womble, Vice Chairman of the Regents; Arcilia Acosta, Member of the Regents; Pat Gordon, Member of the Regents; Clay C. Cash, Member of the Regents; Tim Culp, Member of the Regents; Shelly Sweatt, Member of the Regents; Doug McReaken, Member of the Regents; Donald Sinclair, Member of the Regents; Eli Heath, Member of the Regents; William Keffer; Texas Tech University System Board of Regents,

Defendants–Appellees.

On Appeal from the United States District Court for the Northern District of Texas, No. 5:26-CV-73

REPLY OF PLAINTIFF–APPELLANT ELLEN FISHER

Michael Thad Allen
Allen Harris, P.L.L.C.
P.O. Box 404
Quaker Hill, CT 06375
(860) 772-4738
mallen@allenharrislaw.com
Counsel for Plaintiff–Appellant

August 17, 2026

TABLE OF CONTENTS

Procedural Background 1

Argument 1

A. The Fifth Circuit Has Already Held that Retraction May Be Ordered as Prospective Relief 1

Conclusion 5

Certificate of Compliance 6

Certificate of Service 7

TABLE OF AUTHORITIES

Cases

Dayton Indep. Sch. Dist. v. U.S. Mineral Prods. Co., 906 F.2d 1059 (5th Cir. 1990) 1

Ex parte Young, 209 U.S. 123 (1908) 2, 3, 4

Fisher v. Tex. Tech. Univ. Sys. Bd. of Regents, No. 5:26-CV-0073-X, 2026 LX 496365 (N.D. Tex. Aug. 14, 2026) 1

Green Valley Special Util. Dist. v. City of Schertz, 969 F.3d 460 (5th Cir. 2020) 2

NiGen Biotech, L.L.C. v. Paxton, 804 F.3d 389 (5th Cir. 2015) 2, 3, 4, 5

Steel Co. v. Citizens for a Better Env't, 523 U.S. 83 (1998) 5

Statutes & Other Authorities

42 USC 2000d 1

PROCEDURAL BACKGROUND

Plaintiff Ellen Mae Fisher informs the Court that while this Reply was pending, on Friday, August 14, 2026, the lower court dismissed her First Amendment claim in its entirety. *Fisher v. Tex. Tech. Univ. Sys. Bd. of Regents*, No. 5:26-CV-0073-X, 2026 LX 496365 (N.D. Tex. Aug. 14, 2026). However, a claim under Title VI of the Civil Rights Act of 1964, 42 USC 2000d survives and her case proceeds. *Id.* at *20. The Title VI claim is not implicated on this appeal.

In dismissing the First Amendment claim, the court below applied the same reasoning in its prior decisions on her Motion for Preliminary Injunction and Motion for Preliminary Injunction Pending Appeal which are currently before this Court. *Id.* at *7–*14. The lower court's decision on the motion to dismiss does not raise new grounds for disposing of Fisher's plea for injunctive relief due to Defendants' First Amendment retaliation, to which she is entitled. The new decision does not divest the Court of appellate jurisdiction or moot this appeal. *See Dayton Indep. Sch. Dist. v. U.S. Mineral Prods. Co.*, 906 F.2d 1059, 1063 (5th Cir. 1990).

ARGUMENT

A. The Fifth Circuit Has Already Held that Retraction May Be Ordered as Prospective Relief

As this Court has already held, Plaintiffs are entitled to "lift a yoke of alleged

unconstitutional conduct from [their] own shoulders," including ordering state action "which would require a retraction." *NiGen Biotech, L.L.C. v. Paxton*, 804 F.3d 389, 398 (5th Cir. 2015) (reversing district court's dismissal concerning entitlement to retraction as injunctive relief under *ex parte Young*).[1] Defendants claim that all relief sought by Fisher is retrospective, which is obviously not the case given Texas Tech's ongoing retaliation against her. More specifically, Defendants claim that retraction of a state actor's letters or notices to a third-party constitute impermissible injunctive relief because it is "backwards looking." ROA at 1177 (quoting *Green Valley Special Util. Dist. v. City of Schertz*, 969 F.3d 460, 471 (5th Cir. 2020)).[2] But to affirm the position taken by the lower court and argued by Defendants requires this Court to overrule *NiGen*.

In *NiGen*, the AG made an official determination that a dietary supplement maker used product labels that were "false, misleading, or deceptive" in violation of the Texas' Deceptive Trade Practices Act. *NiGen*, 804 F.3d at 392. After the AG

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[1] *NiGen* also affirmed the dismissal of state law claims on the basis of sovereign immunity as well as the plaintiff company's claims for money damages, but this is not relevant here. *See NiGen Biotech, L.L.C. v. Paxton*, 804 F.3d 389, 394 (5th Cir. 2015).

[2] Contrary to the court's ruling below, *Green Valley Special Util. Dist. v. City of Schertz*, 969 F.3d 460, 472 n.21 (5th Cir. 2020) expressly held that this Court was not prohibiting injunctions that require the state to take affirmative action as "backward looking" under *Ex parte Young*. There, the plaintiff Green Valley had also sought an order to recertify land already decertified by the state, which this Court declined to grant. But this was not because the Court held this to be "quintessentially retrospective" and therefore out of bounds. *Cf.* ROA at 1177 (quoting *Green Valley* at 473). Rather this Court did so because "Green Valley needs only one form of available prospective relief, and its two other requests for injunctive relief pass muster. Accordingly, we leave for another day the question whether recertification is impermissible…" (emphasis added). *Green Valley*, 969 F.3d at 472 n.21.

made this decision and after the AG's letters issued, NiGen sued the Texas Attorney General under the First and Fourteenth Amendment (along with other constitutional claims).[3]

The AG issued letters not only directly to NiGen (akin to Defendants issuing a reprimand letter directly to Fisher), but also to third-party retailers in Texas (akin to Defendants reporting the reprimand to the Law Examiners). *Id.* at 397. The AG letters crippled NiGen's business, just as Defendants here seek to cripple Fisher in her chosen profession of law, and "amounted to a preliminary injunction against the lawful sale of NiGen's products." *Id.* The AG also threatened further enforcement if NiGen did not comply, just as Texas Tech will continue to fire off letters to each bar overseer Fisher applies to in the future. *Id.*

The independent third-party retailers who received these AG letters (e.g. CVS, Walgreens, and Walmart) could clearly make their own independent decisions as to whether to place orders for NiGen's products. But the fact that these third-party retailers made their own independent decisions did not bar NiGen from seeking injunctive relief under *ex parte Young*. *Id.* at 395.

However, one major difference from Fisher's case makes her argument even stronger. Here, Fisher moved for a preliminary injunction to maintain the last uncontested status of the parties before Texas Tech had even taken official adverse

[3] The other constitutional claims were equal protection and violation of the Commerce Clause and the Supremacy Clause.

action against her. But NiGen waited fully two months to bring suit after the AG issued its letters. *Id.* at 392. The fact that the AG could act faster than a plaintiff could file or a court could issue orders did not strip away federal jurisdiction. Furthermore, unlike District Judge Starr here, whom no one can remotely accuse of lethargy or being lackadaisical in doing the court's work—and who addressed Fisher's preliminary injunction motion within a month—NiGen had to wait two full years before the lower court responded by dismissing its case in its entirety. *Id.* at 393. But this judicially imposed time lag did not render injunctive relief unavailable under *ex parte Young*.

In *NiGen*, the State of Texas more or less mounted the same arguments against *Ex parte Young* jurisdiction raised against Fisher. Contrary to finding the AG's official letters to be past, complete, official state action and denying relief as "backwards looking," this Court found:

> … a favorable court decision would allow NiGen to again sell its products freely in Texas, whether directly, through its prior retailers, through other retailers, etc. It would allow NiGen to repair its damaged relationship with its retailers that has resulted from the Attorney General's conduct. This is not speculative and is not dependent on the actions of third parties.

Id. at 397 (adopting appellant's reasoning). This satisfied the company's requirement to allege "a continuing violation or the imminence of a future violation" and also satisfied the "redressability" requirement for prospective

injunctive relief. *Id.* (citing *Steel Co. v. Citizens for a Better Env't*, 523 U.S. 83, 108 (1998) and distinguishing other circuit's cases).

CONCLUSION

For the foregoing reasons, the Court should grant Plaintiff Ellen Mae Fisher the relief requested in her Appellant's Brief.

Dated: August 17, 2026

Respectfully submitted,

/s/ Michael Thad Allen

Michael Thad Allen
Allen Harris PLLC
P.O. Box 404, Quaker Hill, CT 06375
(860) 772-4738
mallen@allenharrislaw.com
Counsel for Plaintiff–Appellant Ellen Mae Fisher

CERTIFICATE OF COMPLIANCE

I hereby certify that the foregoing reply brief complies with the type-volume limitation of Federal Rule of Appellate Procedure 32(a)(7)(B) because it contains 1,108 words, excluding the parts of the brief exempted by Federal Rule of Appellate Procedure 32(f). The brief complies with the typeface and type-style requirements of Federal Rule of Appellate Procedure 32(a)(5) and (6) because it is set in a proportionally spaced serif typeface, 14-point or larger, and the footnotes are set in 12-point type.

/s/ Michael Thad Allen

Michael Thad Allen
Allen Harris PLLC
P.O. Box 404, Quaker Hill, CT 06375
(860) 772-4738
mallen@allenharrislaw.com
Counsel for Plaintiff–Appellant Ellen Mae Fisher

CERTIFICATE OF SERVICE

I hereby certify, in compliance with Federal Rule of Appellate Procedure 25(d), that I served the foregoing reply on August 17, 2026, through the Court's electronic filing system and by electronic mail to the following attorneys of record:

Daniel Ortner, Assistant Solicitor General, Office of the Texas Attorney General, Daniel.ortner@oag.texas.gov

Wade Johnson, Deputy Chief, Special Litigation Division, Office of the Attorney General, P.O. Box 12548, Austin, Texas 78711-2548, Wade.Johnson@oag.texas.gov

/s/ Michael Thad Allen

Michael Thad Allen
Allen Harris PLLC
P.O. Box 404, Quaker Hill, CT 06375
(860) 772-4738
mallen@allenharrislaw.com
Counsel for Plaintiff–Appellant Ellen Mae Fisher